



POLICY ON PREVENTION OF SEXUAL HARASSMENT AT WORKPLACE

1. INTRODUCTION:

- a. Mann Fleet Partners Limited (“**Company**”) considers the Prevention of Sexual Harassment in the workplace to be a core component of the Management of the Company and is committed to providing a work environment that ensures every employee is treated with dignity and respect and afforded equitable treatment.

This Prevention of Sexual Harassment in the Workplace Policy (“**Policy**”) applies to all categories of employees of the Company, including permanent employees, temporary employees, trainees and employees on contract at their workplace or at client sites and any person responsible for the management, supervision and control of the workplace. The Company will not tolerate sexual harassment, if engaged in, by any employee or co-worker of the Company, its clients or by suppliers or any other business associate.

- b. The Company aims to adopt zero tolerance attitudes against any kind of Sexual Harassment or Discrimination caused by any employee/ employer during their tenure towards any other person being an Employee, Client, Vendor and Contractor in Company premises or elsewhere in India or abroad.

2. EFFECTIVE DATE:

This policy will come into effect from the date of its adoption by the Board.

3. OBJECTIVES AND PURPOSE:

This Policy has been framed in line with the Company’s objective towards providing a work environment that ensures every employee is treated with dignity and respect and afforded equitable treatment and the Company is also committed to promoting a work environment that is conducive to the professional growth of its employees and encourages equality of opportunity.

4. DEFINITION OF SEXUAL HARASSMENT:

- a. Sexual Harassment may be one or a series of incidents involving unsolicited and unwelcomed sexual advances, requests for sexual favours, or any other verbal or physical conduct of sexual nature.
- b. Sexual Harassment at the workplace includes:
 - i. unwelcomed sexual advances (verbal, written or physical),
 - ii. demand or request for sexual favours,

- iii. sexually coloured remarks or remarks of a sexual nature about a person's clothing or body;
- iv. showing pornography, making or posting sexual pranks, sexual teasing, sexual jokes, sexually demeaning or offensive pictures, cartoons or other materials through email, SMS, MMS etc.
- v. verbal abuse or 'joking' that is sex-oriented;
- vi. any conduct that has the purpose or the effect of interfering with an individual's work performance or creating an intimidating, hostile or offensive work environment and/or submission to such conduct is either an explicit or implicit term or condition of employment and /or submission or rejection of the conduct is used as a basis for making employment decisions;
- vii. any other type of sexually-oriented conduct.

5. RESPONSIBILITIES REGARDING SEXUAL HARASSMENT:

- a. All employees of the Company have a personal responsibility to ensure that their behaviour is not contrary to this policy.
- b. All employees are encouraged to reinforce the maintenance of a work environment free from sexual harassment.

6. COMPLAINT MECHANISM:

An appropriate complaint mechanism in the form of Internal Complaints Committee has been created in the Company for time-bound redressal of the complaint made by the victim.

7. INTERNAL COMPLAINTS COMMITTEE (ICC):

- a. The Company has constituted an Internal Complaints Committee for redressal of sexual harassment complaint (made by the victim) and for ensuring time bound treatment of such complaints.
- b. Initially, and till further notice, the Internal Complaints Committee will comprise of the following four members out of which at least two members will be of the same gender as that of the complainant:

- i. Presiding Officer: A woman employed at a senior level in the organization or workplace from amongst the employees;
- ii. At least 2 members from amongst employees, committed to the cause of women or have had experience in social work or having legal knowledge;
- iii. One member from amongst non-governmental organisations or associations committed to the cause of women or a person familiar with the issues relating to sexual harassment.
At least one half of the total members shall consist of women.

c. The ICC is responsible for:

- i. Receiving complaints about sexual harassment at workplace;
- ii. Investigating every formal written complaint of sexual harassment;
- iii. Coordinating with employer in implementing appropriate action;
- iv. Taking appropriate remedial measures to respond to any substantiated allegations of sexual harassment;
- v. Discouraging and preventing employment-related sexual harassment.

8. WHO CAN FILE COMPLAINT:

- i. aggrieved woman
- ii. where the aggrieved woman is unable to make a complaint on account of her *physical incapacity*, complaint may be filed by:
 - a. her relative or friend; or
 - b. her co-worker; or
 - c. an officer of the National Commission for Women or State Women's Commission; or
 - d. any person who has knowledge of the incident, with the written consent of the aggrieved woman;

- iii. where the aggrieved woman is unable to make a complaint on account of her *mental incapacity*, a complaint may be filed by-
- iv. where the aggrieved woman for any other reason is unable to make a complaint, a complaint may be filed by any person who has knowledge of the incident, with her written consent;
- v. where the aggrieved woman is *dead*, a complaint may be filed by any person who has knowledge of the incident, with the written consent of her legal heir.

9. HOW TO FILE COMPLAINT:

- i. Complaint should be filed within a period of (3) three months from the date of incident and in case of series of incidents, within a period of three months from the date of last incident.
- ii. Complaint should be in writing.
- iii. Six copies of complaint along with supporting documents are to be submit with the Committee.
- iv. Content of Complaint:
 - a. description of each incident,
 - b. relevant dates, time and location,
 - c. Respondent name,
 - d. Working relationship between the parties,
 - e. Name of witness, if any,
 - f. Any other relevant information
- v. Internal Complaints Committee may, for the reasons to be recorded in writing, extend the time limit for submitting the complaint for not exceeding three months, if it is satisfied that the circumstances were such which prevented the woman from filing a complaint within the said period.

10. PROCEDURES FOR RESOLUTION, SETTLEMENT OR PROSECUTION OF ACTS OF SEXUAL HARASSMENT:

The Company is committed to providing a supportive environment to resolve concerns of sexual harassment as under:

a. **Informal Resolution Options**

- i. When an incident of sexual harassment occurs, the victim of such conduct can communicate their disapproval and objections immediately to the harasser and request the harasser to behave decently.
- ii. If the harassment does not stop or if the victim is not comfortable with addressing the harasser directly, the victim can bring their concern to the attention of the Complaints Committee for redressal of their grievances. The Complaints Committee will thereafter provide advice or extend support as requested and will undertake prompt investigation to resolve the matter.

b. **Complaints:**

- i. An employee with a harassment concern, who is not comfortable with the informal resolution options or has exhausted such options, may make a formal complaint to the Presiding Officer of the Complaints Committee constituted by the Company. The complaint shall have to be in writing and can be in the form of a letter, preferably within fifteen (15) days from the date of occurrence of the alleged incident and in case of a series of incidents, within fifteen (15) days from the occurrence of last alleged incident, sent in a sealed envelope, but no later than three months from the date of incident and in case of a series of incidents, no later than three months from the date of last incident (The Complaints Committee may, for the reasons to be recorded in writing, extend the time limit not exceeding three (3) months, if it is satisfied that the circumstances were such which prevented the employee from filing a complaint within the said period.). Alternately, the employee can send the complaint through an email. The employee is required to disclose their name, department, division and location they are working in, to enable the Presiding Officer to contact them and take the matter forward.
- ii. The Presiding Officer of the ICC will proceed to determine whether the allegations (assuming them to be true only for the purpose of this determination) made in the complaint fall under the purview of Sexual Harassment, preferably within thirty (30) days from receipt of the complaint.
- iii. In the event, the allegation does not fall under the purview of Sexual Harassment or the allegation does not constitute an offence of Sexual Harassment, the Presiding Officer will record this finding with reasons and communicate the same to the complainant.
- iv. If the Presiding Officer of the ICC determines that the allegations constitute an act of sexual harassment, she will proceed to investigate the allegation with the assistance of the Complaints Committee.

- v. Where such conduct, on the part of the accused, amounts to a specific offence under the law, the Company shall initiate appropriate action in accordance with law by making a complaint with the appropriate authority.
- c. The ICC shall conduct such investigations in a timely manner and shall submit a written report containing the findings and recommendations to the Board as soon as practically possible and in any case, not later than ninety (90) days from the date of receipt of the complaint. The Executive Director will ensure corrective action on the recommendations of the ICC and keep the complainant informed of the same.
- d. Corrective action may include any of the following:
 - i. Formal apology
 - ii. Counselling
 - iii. Conciliation
 - iv. Written warning to the perpetrator and a copy of it maintained in the employee's file
 - v. Change of work assignment / transfer for either the perpetrator or the victim
 - vi. Suspension or termination of services of the employee found guilty of the offence
- e. In case the complaint is found to be false, the Complainant shall, if deemed fit, be liable for appropriate disciplinary action by the Management.

11. INTERIM RELIEF:

During pendency of the inquiry, on a written request made by the complainant, the Committee may recommend to the employer to –

- a. Transfer the complainant or the respondent to any other workplace
- b. Grant leave to the aggrieved woman of maximum 3 months, in addition to the leave she would be otherwise entitled
- c. Prevent the respondent from assessing complainant's work performance
- d. Grant such other relief as may be appropriate Once the recommendations of interim relief are implemented, the employer will inform the committee regarding the same

12. CONFIDENTIALITY:

- a. The Company understands that it is difficult for the victim to come forward with a complaint of sexual harassment and recognizes the victim's interest in keeping the matter confidential.

- b. To protect the interests of the victim, the accused person and others who may report incidents of sexual harassment, confidentiality will be maintained throughout the investigatory process to the extent practicable and appropriate under the circumstances.

13. ACCESS TO REPORTS AND DOCUMENTS:

All records of complaints, including contents of meetings, results of investigations and other relevant material will be kept confidential by the Company except where disclosure is required under disciplinary or other remedial processes.

14. PROTECTION TO COMPLAINANT / VICTIM:

- a. The Company is committed to ensuring that no employee who brings forward a harassment concern is subject to any form of reprisal. Any reprisal will be subject to disciplinary action.
- b. The Company will ensure that the victim or witnesses are not victimized or discriminated against while dealing with complaints of sexual harassment.
- c. However, anyone who abuses the procedure (for example, by maliciously putting an allegation knowing it to be untrue) will be subject to disciplinary action.

15. CONCLUSION:

In conclusion, the Company reiterates its commitment to providing its employees a workplace free from harassment/ discrimination and where every employee is treated with dignity and respect.